CRIMINALIZING REPORTING

Morocco v. Omar Radi II

9 October 2026

CASE FOLLOW-UP REPORT

Procedural developments and verified outcomes

Independent research based on user-supplied TrialWatch materials

ABOUT THIS UPDATE

This independent research update follows the user-supplied TrialWatch material. It is not issued by the Clooney Foundation for Justice, TrialWatch, or the original authors. The earlier report supplies the historical baseline; later developments are supported by the sources cited here.

Jurisdiction	Morocco
Original report	July 2022
Dated update covered	6 October 2026
Research cutoff	9 October 2026
Historical assessment	TrialWatch grade D (original report only)

SCOPE AND METHOD

Research considered public court records, enacted legislation, lawyers and subjects, press-freedom organizations, United Nations materials and attributable reporting available through 9 October 2026. Publication dates and event dates are distinguished. Where judgments or current custody records could not be obtained, the conclusion is expressly qualified. No direct interviews or new trial monitoring were conducted for this update.

An acquittal, quashing order, pardon, sentence completion, bail decision and custody transfer have different legal effects. A reported intention to litigate is separated from an actual filing. Unresolved questions are listed below. Historical TrialWatch grades retain their original attribution; this update does not assign a new grade.

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EXECUTIVE SUMMARY

LATEST VERIFIED POSITION

Cassation rejected in 2023; pardoned and released in 2024, vacatur unverified

The latest dated follow-up is an interview publication. The last verified change to custody is pardon and release on 29 July 2024. PEN's March 2025 profile still reported uncertainty over quashing. The pardon is not described here as an acquittal, and the disposition of civil compensation is unverified.

Following the appeal judgment already recorded in the original, Morocco's Court of Cassation rejected Radi's challenge on 18 July 2023, according to RSF. He was subsequently pardoned and released on 29 July 2024. These are distinct developments: cassation did not reverse the conviction, and clemency ended custody without verified judicial exoneration. [1] [2] [3]

PEN's March 2025 profile continued to identify uncertainty about quashing. Amnesty published a new surveillance investigation on 1 October 2026. Al Jazeera interviewed Radi on 6 October 2026. The latest follow-up does not establish a new judicial outcome. [5] [6] [7]

1. User-supplied original report, July 2022.
2. Reporters Without Borders, 19 July 2023. Morocco's Court of Cassation rejects final ap...
3. PEN International, 31 July 2024. Morocco: PEN International welcomes the relea...
5. PEN International, 21 March 2025. Omar Radi
6. Amnesty International, 1 October 2026. Morocco: Whistleblower reveals how authoritie...
7. Al Jazeera, 6 October 2026. Radi interview

BACKGROUND AND PROCEDURAL HISTORY

This report concerns the prosecution initiated after Radi's arrest on 29 July 2020, involving national-security and sexual-assault allegations. On 19 July 2021, the court convicted him of the charged offenses, sentenced him to six years' imprisonment, and ordered 200,000 Moroccan dirhams in compensation to the complainant. The original records an appellate judgment upholding the result on 3 March 2022. It is separate from the March 2020 conviction for criticizing a judge in a tweet. [1]

Professor Hannah R. Garry assigned the original proceedings a D grade. TrialWatch identified prolonged pretrial detention, impaired access to defense evidence, limits on testing prosecution testimony, and impartiality concerns. It specifically discussed the refusal to hear a Dutch diplomat, treatment of defense witness Imad Stitou as a co-accused, and alleged smear campaigns. These are the report's findings and assessments, not a later acquittal or a judicial determination that all allegations were fabricated. [1]

KEY PROCEDURAL DATES

29 July 2020	Arrest in the later national-security and sexual-assault prosecution. [1]
19 July 2021	Conviction, six-year prison sentence, and 200,000-dirham compensation order. [1]
3 March 2022	Appeal judgment upheld the conviction and sentence, as dated in the original report. [1]
July 2022	Original TrialWatch report published; the appeal outcome was already part of the baseline. [1]
18 July 2023	Court of Cassation rejected the challenge, reported by RSF on 19 July. [2]
29 July 2024	Royal pardon and actual release, confirmed by PEN on 31 July. [3]
21 October 2024	CPJ reported threatening calls to Radi following release. [4]
21 March 2025	PEN's profile described continuing pressure and unresolved quashing status. [5]
1 October 2026	Amnesty published additional surveillance evidence concerning Radi. [6]
6 October 2026	Interview published. [7]

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4. Committee to Protect Journalists, 21 October 2024. Morocco's pardoned journalists face smears, t...
5. PEN International, 21 March 2025. Omar Radi
6. Amnesty International, 1 October 2026. Morocco: Whistleblower reveals how authoritie...
7. Al Jazeera, 6 October 2026. Radi interview

SUBSEQUENT DEVELOPMENTS

RSF reported that the Court of Cassation rejected Radi's and Soulaimane Raissouni's challenges on 18 July 2023, following earlier postponements. This supplies the principal post-report judicial outcome. RSF criticized the proceedings and sought a royal pardon; those advocacy assessments must remain attributed. A reported cassation rejection should not be expanded into an assertion that every possible extraordinary or international remedy had been exhausted. [2]

PEN confirmed release under the royal pardon granted on 29 July 2024. CPJ subsequently recorded threatening calls to Radi. By March 2025, PEN's case profile still treated the effect on conviction as unclear. The publicly verified change is therefore liberty through clemency, not an established reversal or deletion of the conviction. [3] [4] [5]

Amnesty's 1 October 2026 investigation reports a whistleblower's account of microphones in Radi's apartment. It says key testimony was corroborated, notes earlier Moroccan denials, and records no response to its inquiry. These are attributed NGO findings concerning historical surveillance, not a court judgment or proof of renewed detention in 2026. [6]

LEGAL AND PROCEDURAL ASSESSMENT

The following assessment draws inferences from the cited record. It does not represent a new court finding or TrialWatch grade.

the sequence has two different legal meanings. The 2023 cassation rejection left the challenged judgment undisturbed through that route. The 2024 pardon brought release. Without the individualized pardon instrument or a later judgment, the research cannot establish whether the conviction, collateral restrictions, or private compensation obligation were removed. Those questions must not be answered by substituting the language of acquittal for clemency. [1] [2] [3] [5]

later surveillance material is relevant to the original report's concerns about the environment surrounding the prosecution, but does not itself decide evidentiary issues in the sexual-assault case. Protecting that distinction avoids treating an NGO investigation as a merits judgment. Similarly, reported intimidation after release supports concern about practical freedom without proving imprisonment continued. [1] [4] [6]

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CONCLUSION AND OUTSTANDING RECORDS

The supported update is cassation rejection, followed by pardon and verified release, with later reports of pressure and no verified vacatur. The original D grade remains an attributed historical assessment. A claim of conviction clearing, compensation cancellation, or a final UN remedy would require documentation not located in this research. [1] [2] [3] [5]

RECORDS NOT VERIFIED

1. Obtain the Court of Cassation judgment and the individualized royal pardon instrument, rather than relying solely on reported outcomes.

2. Was the conviction subsequently quashed or expunged, and did professional or travel restrictions remain? PEN's March 2025 profile did not resolve the legal effect.

3. What became of the 200,000-dirham compensation order? Release does not establish cancellation of the civil obligation.

4. Did the UN Working Group on Arbitrary Detention issue an opinion specifically in Radi's case? No authenticated opinion or disposition was located; do not substitute opinions concerning other Moroccan journalists.

5. Were subsequent privacy, surveillance, or rehabilitation claims filed and adjudicated? The 2026 investigation is not evidence of such a court decision.

Failure to locate an update leaves a gap in the available evidence; it does not establish that no later proceeding or change occurred. Any present-status claim should be read with the dated scope stated in the executive summary.

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3. PEN International, 31 July 2024. Morocco: PEN International welcomes the relea...
5. PEN International, 21 March 2025. Omar Radi

SOURCES AND REFERENCES

Numbered references correspond to superscript citations and page notes. Web sources were consulted for this research through 9 October 2026. Original reports are local user-supplied files. Each link opens the cited source.

1. **Original user-supplied report on Morocco v. Omar Radi II**
TrialWatch / original report authors. July 2022.
Local PDF: morocco-v-omar-radi-ii.pdf
Coverage: Historical case baseline and original assessment

2. **Morocco's Court of Cassation rejects final appeals by two jailed journalists**
Reporters Without Borders. 19 July 2023.
Read source at rsf.org
Coverage: Cassation rejection on 18 July 2023; Prior postponements; RSF's criticism and call for pardon are advocacy assessments

3. **Morocco: PEN International welcomes the release of journalists**
PEN International. 31 July 2024.
Read source at www.pen-international.org
Coverage: Royal pardon and release on 29 July 2024

4. **Morocco's pardoned journalists face smears, threats after prison**
Committee to Protect Journalists. 21 October 2024.
Read source at cpj.org
Coverage: Threatening calls to Radi following release; Uncertain legal and professional effects of pardons

5. **Omar Radi**
PEN International. 21 March 2025.
Read source at www.pen-international.org
Coverage: Continuing reported pressure; Unclear whether the conviction was quashed

6. **Morocco: Whistleblower reveals how authorities used a web of surveillance to silence journalists and activists**
Amnesty International. 1 October 2026.
Read source at www.amnesty.org
Coverage: Microphone allegations, corroboration, earlier denials, unanswered inquiry

7. **Radi interview**
Al Jazeera. 6 October 2026.
Read source at www.aljazeera.com
Coverage: Interview with Radi.